



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, N.W.
Washington, D.C. 20590

APR 22 1992

DOT-E 10769

1. PPG Industries, Incorporated, Pittsburgh, Pennsylvania is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a nonflammable gas for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a DOT Specification 105A500W tank car which is overdue for tank and safety valve tests and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on PPG Industries Incorporated's application of April 6, 1992, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.

3. HAZARDOUS MATERIALS (Descriptor and class). Chlorine, classed as nonflammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Chlorine.

5. REGULATION AFFECTED. 49 CFR 173.29(c)(2).

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 105A500W tank car, PPGX 1835, meeting all DOT requirements (49 CFR Parts 100-299), except that the tank car tank and safety valve is overdue for tests.

8. SPECIAL PROVISIONS.

a. Shipment for tank car, PPGX 1835, must be from SCM Chemicals Plant, Ashtabula, Ohio, to PPG's Natrium plant, near New Martinsville, West Virginia, a distance of approximately 200 miles. Routing for the shipment is designated as CR-Millvale-CSXT-delivery.

b. Tank car must be marked "DOT-E 10769" in four inch letters on a contrasting background above the DOT Specification number.

c. The Federal Railroad Administration is to be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

d. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. May 16, 1992.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

APR 22 1992

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FRA.